

Andhra Pradesh State Public Distribution System Control Order, 2001

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State of Andhra Pradesh - Act

Andhra Pradesh State Public Distribution System Control Order, 2001

ANDHRA PRADESH

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Andhra Pradesh State Public Distribution System Control Order, 2001

Rule ANDHRA-PRADESH-STATE-PUBLIC-DISTRIBUTION-SYSTEM-CONTROL-ORDER-2001 of 2001

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Andhra Pradesh State Public Distribution System Control Order, 2001

Published vide Notification No. G.O.Ms.No. 16, Food, Civil Supplies and Consumer Affairs (CS-I), dated 6.4.2002

Last Updated 26th August, 2019

G.O.Ms.No. 16. - In exercise of the powers conferred by Section 3 of the Essential Commodities Act, 1955 (Central Act 10 of 1955) and in terms of the order of Government of India, Ministry of Consumer Affairs, Food and Public Distribution GSR No. 630(E), dated 31st August, 2001, the Government of Andhra Pradesh in Supersession of the Andhra Pradesh Scheduled Commodities (Regulation of Distribution by Card System) Order, 1973 issued in G.O.Ms.No. 1088, F and A (CS IV) Department, dated 28th September, 1973, the Government of Andhra Pradesh hereby makes the following order.

1.

Short Title, Extent and Commencement.

(a)
This order may be called the Andhra Pradesh Public Distribution System (Control Order) 2001.

(b)
It extends to the whole of the State of Andhra Pradesh.

(c)
It shall come into force from the date of publication in the Andhra Pradesh Gazette.

2.
Definitions.

(1)
"Above Poverty Line Families" means those families who have been issued Above Poverty Line Cards (APL ration cards) for issue of food grains under the Public Distribution System.

(2)
"Act" means the Essential Commodities Act, 1955 in this order unless the context otherwise requires Central Act 10 of 1955.

(3)
"Antyodaya Families" means those poorest families from amongst Below Poverty Line (BPL) families identified and entitled to receive foodgrains under the Antyodaya Annayojana.

(4)
"Appointing Authority" means District Supply Officer having jurisdiction over the area in respect of Hyderabad District, the District Supply Officer (City) having jurisdiction over the area in respect of Visakhapatnam city and the Revenue Divisional Officer or the Sub-Collector concerned in respect of other districts.

(5)
"Authorised Establishment" means a person incharge of an establishment authorised by or on behalf of the State Government under Clause 3 for purpose of this order.

(6)
"Authorised Fair Price Shop" means a retail dealer appointed or authorised or approved by or on behalf of the State Government and includes a shop set up by the State Government or a State Government Undertaking or a Corporation wholly owned by the State Government or a Co-operative Society for the benefit of Scheduled Castes or Scheduled Tribes under a Government Scheme under clause (5) for sale of all or any of the Scheduled Commodities.

Explanation. - On the commencement of this order in any area every dealer who was appointed, authorised or approved by or on behalf of the State Government (as approved retailer or by any other designation and whose appointment) authorization or approval was in force in respect of any of the Scheduled Commodities immediately before such commencement, shall be deemed to be an authorised fair price shop dealer in that area for supply of those commodities for the purpose of this Order, unless otherwise directed by the State Government or the Collector concerned.

(7)
"Below Poverty Line Families" means those families who have been identified by the Government for issue of food grains at specially subsidized rates adopting the estimates of poverty given by the Central Government.

(8)
"Collector" means the District Collector or the Joint Collector of the District or as the case may be the Chief Rationing Officer, Hyderabad.

(9)
"Commissioner" means Commissioner of Civil Supplies, Government of Andhra Pradesh and includes the "Director" of Civil Supplies, Government of Andhra Pradesh.

(10)
"Eligible Applicant" means an individual who is resident of a State and fulfills the conditions for getting a ration card as may be prescribed by the State Government.

(11)
"Establishment" means any catering establishment, residential establishment, manufacturing establishment. Mill, Industry, Animal establishment and any other establishment or class of establishment which the State Government or the Collector may declare on establishment for the purpose of this order.

(12)

"Establishment Consumption" means using upto the Scheduled Commodities by an establishment for consumption on the premises of the establishment or elsewhere.

(13)

"Essential Commodities" means essential commodities as defined under the Act.

(14)

"Form" means the Form set forth in the schedule to this order.

(15)

"Household Consumption" means consumption of Scheduled Commodities other than establishment consumption.

(16)

"Scheduled Commodity" means any commodity specified in the schedule to this Order, which is supplied by the State Government or to any authorised fair price shop or establishment for issue to the Consumers.

(17)

"State Government" means the Government of the State of Andhra Pradesh.

(18)

"Supply Card" or "Ration Card" means a household food grains card, or any other card permit or other document issued or made available under the provisions of this Order for obtaining supplies of all or any of the Scheduled Commodities and any card permit or other document issued by or on behalf of the State Government before the commencement of this order in any areas and on which any of the scheduled commodities were obtainable immediately before such commencement, shall be deemed to be a supply card or Ration card issued and available in that area for obtaining those scheduled commodities under the provisions of this order.

(19)

"Supply Document" means a supply card, authorisation or any other document issued or made available or deemed to be issued or made available under the provisions of this order for purchasing, selling or distribution of all or any of the scheduled commodities.

(20)

"Public Distribution System" means the system for distribution of essential commodities to the ration card holders through the fair price shops, such as rice, wheat, sugar, edible oils, kerosene and such other commodities as are notified by the Central Government under clause (a) of Section 2 of the Act.

3.

Identification of families below the Poverty Line.

- The Government for the purpose of identification of families living below the poverty line shall follow the norms as prescribed in the paragraph 1 of the Annexure to this Order.

4.

Ration Cards.

- The Government shall issue distinctive ration cards to the above Poverty line and below Poverty line and Antyodaya families on the norms as prescribed in the paragraph 2 of the Annexure to the Order.

5.

Issue of Authorisation to Fair Price Shops and Establishment.

(1)

With a view to controlling and ensuring proper distribution of scheduled commodities owned by the State Government, the appointing authority may issue authorisations to fair price shops owned by the State Government or any State Government Undertaking or any public institution or persons including women or Development of Women and Children in Rural Areas group (DWCR) or registered Women voluntary consumer organisations or thrift groups like Podupu Lakshmi or Co-operative societies which are run exclusively by women (Which have only women as members) either wholly or partly, subject to such preferences and reservations as may be prescribed by Government from time to time in this regard to obtain and supply scheduled commodities in accordance with the provisions of this order.

Provided that the said authorisation shall cease to be valid when the Government undertake running of the authorised fair price shop either by themselves or through a Government undertaking or a corporation wholly owned by the Government or a Cooperative Society for the benefit of Scheduled Castes or Scheduled Tribes under a Government Scheme.

Provided further that the State Government may, in the Public interest, replace all or any of the fair price shop dealers

and entrust the distribution through a shop set up by the State Government, a State Government undertaking or a Corporation wholly owned by the State Government or a Co-operative Society for the benefit of Scheduled Castes or Scheduled Tribes under a Government Scheme:

Provided also that any person dealing in the same commodities obtained otherwise than through Government for supply through Public Distribution System either in his own name or in the name of any member of his family shall not be issued authorisation to run the fair price shop and the Government, in cases where the fair price shop dealer has also got a licence in his own name or in the name of any of his family member to deal with the same commodities, obtained otherwise than through the Government for sale to consumers through Public Distribution System, cancel the authorisation. Provided also that every fair price shop dealer should give an undertaking to the appointing authority concerned that he or she would relinquish the dealership if he or she is elected to any public office.

(2)

Every authorised fair price shop dealer or co-operative society as the case may be, shall deposit with the State Government or the appointing authority or any person authorised in this behalf "a sum of Rs. 4,000/- (Rupees Four Thousand only) in the case of Urban areas and a sum of Rs. 3,000/- (Rupees Three Thousand only) in the case of Rural areas" as refundable trade deposit in the shape of security deposit for the due performance of the conditions of the authorisation and the sum so deposited or any part thereof may, without prejudice to any other penalty, after enquiry, and after giving a reasonable opportunity to the person to whom the authorisation is issued, of stating his case and also of being heard, and for reasons to be recorded in writing, be forfeited, by the State Government or the appointing authority for contravention of any of the provisions of this orders or any conditions of the authorisation issued thereunder. If as a result of any departmental action the sum deposited or any part thereof is forfeited the authorised fair price shop shall forthwith pay to the Government such amount as may be required to make up the prescribed sum to be deposited as security.

Provided that where a dealer of fair price shop is exempted from payment of the security deposit under the above clause the Government or the appointing authority may, in case of contravention of any of the conditions prescribed in the authorisation, after enquiry and for reasons to be recorded in writing besides cancelling the said authorisation impose penalty of a sum not exceeding the security deposit prescribed for authorised fair price shop in general. Provided further that nothing in this clause shall apply to a shop run by the Government or a Government Undertaking or a Corporation wholly owned by Government under a Government scheme.

(3)

Any agreement executed by any authorised fair price shop for being appointed or approved and which was in force immediately .before the commencement of this Order shall stand cancelled except as respects any thing done or omitted to be done before such commencement and any sum deposited thereunder a security shall be deposited with the Government under sub-clause (2).

(4)

The appointing authority may, at any time where at the request of the authorised fair price shop or authorised establishment or suo motu after making such enquiry as may be deemed necessary and for reasons to be recorded in writing, add to, amend, vary, suspend or cancel the authorisation issued or deemed to be issued to him under this clause.

Notwithstanding anything contained in sub-clauses (3) and (4) above, where a fair price shop dealer has been convicted by a Court of law in respect of contravention of any order made Section 3 of the Essential Commodities Act, 1955 (Central Act 10 of 1955) relating to any of the Commodities mentioned in the scheduled to this order, the appointing authority, shall, by order in writing, cancel his authorisation.

Provided that such conviction is set aside in any appeal or revision, the appointing authority may, on application in Form-I made by the person whose authorisation has been cancelled, reissue the authorisation to such person.

(5)

(i)

Any application for issue or renewal of authorisation shall be made in Form-I to this order and every authorisation issued, re-issued or renewed under this order shall be in the Form of Authorisation prescribed in Form-II to this Order.

(ii)

Every application, for renewal shall be made along with the authorisation.

(iii)

The authorisation may be renewed if the application for renewal is received within one month after the expiry of the period of its validity subject to payment of fee prescribed therefor. However, if an application for renewal of authorisation is not made within one month, after the expiry of its validity, the authorisation shall cease to be valid and the entire security deposit made under sub-clause (2) of clause (3) shall be forfeited.

(iv)

The authorisation is not transferable.

Provided that the validity of the authorisation shall not be deemed to have expired if an application for its renewal as required under this sub-clause is pending before the appointing authority as the case may be.

(6)

Period of authorisation and fees chargeable:

(i)

Every authorisation issued under this order shall be valid for a period ending by 31st March and shall be issued for a period of two years.

(ii)

The fees payable for issue of an authorisation shall be Rs.500/- and that for the renewal of authorisation for two years shall be Rs. 250/-.

Provided that all these fair price shop dealers who are already appointed as dealers shall pay the fees as prescribed under this sub-clause and obtain fresh authorisations within the period of three months from the date of publication of this notification in the Andhra Pradesh Gazette.

5A.

Suo Motu Review.

- The Chief Rationing Officer in respect of Hyderabad City or the District Collector/ Joint Collector elsewhere may either suo motu or on an application may call for examine the records under clause (5) of this order relating to any order passed under sub-clause (2) or (4) for the purpose of satisfying himself as to the legality or propriety or adequacy of the punishment imposed and for reasons to be recorded in writing, add to amend revise or annul the orders passed by the appointing authority. Before passing final orders under this clause, the Chief Rationing Officer, in respect of the twin cities of Hyderabad and Secunderabad District Collector/Joint Collector elsewhere shall give the fair price shop dealer concerned an opportunity of making his representation and pass such order thereon as it may deem fit."

6.

Duplicate Authorisation.

- (i) If the appointing authority is satisfied that an authorisation is defaced lost destroyed or otherwise rendered useless, he may on payment of a fee of Rs. 50/- issue a duplicate authorisation.

(ii)

The fee paid under this sub-clause shall not be refundable.

(iii)

In the absence of authorisation, the F.P. Shop dealer should not be allowed to take up any transaction relating to PDS Commodities.

7.

Supply of Scheduled Commodities by Authorised Fair Price Shop/Authorised Establishment.

- (i) No authorised fair price shop or authorised establishment shall sell or agree to sell or supply or agree to supply scheduled commodities to any person except for household consumption or for the purposes of an establishment other than establishment consumption, except at such prices as may be specified by the Government in this behalf and except under and in accordance with the provisions of this order.

(ii)

The NRs those present are also required to follow a provision existing that they should obtain authorisation as if the Fair Price Shop dealers are obtaining the authorisation.

8.

Powers to issue Supply Cards.

- (i) With a view to controlling the distribution of scheduled commodities the Government or the Collector or Mandal Revenue Officer in rural areas or Assistant Supply Officer may issue or cause to be issued supply cards to any person or class of persons or to the public generally.

(ii)

Provided that no such card shall be delivered to persons unless such person or any adult member of his family to whom the document is tendered on his behalf signs in token of receipt of such document as required by the Officer delivering such document.

(iii)

The Government or the Collector or Mandal Revenue Officer or Assistant Supply Officer or any Officer authorized by the Government or by the Collector may, at any time whether at the request of the person to whom any supply card has been issued or suo motu, after making such enquiry as may be deemed necessary, add to, amend, vary suspend or cancel such card. Where any such card is cancelled, any person in possession of it shall forthwith delivery the same to Government, the Collector or Mandal Revenue Officer or Assistant Supply Officer or authorised Officer as the case may be.

9.

Powers to make Regulations.

- (i) The Government may make regulations providing for the conditions subject to which scheduled commodities may be supplied or obtained for household consumption or establishment consumption or for the purposes of an establishment other than establishment consumption of in connection these with.

(ii)

Any regulations made under this clause shall have effect as if they were incorporated in this regard.

Provided that nothing in the subclauses (1) and (2) above shall apply to a shop run by the Government or the Government Undertaking, or a Corporation wholly owned by the State Government.

10.

Supply of documents to remain property of the State Government.

- Every supply document issued under this order shall be the property of the State Government but the person to whom it is issued or surrendered or with whom it is retained under the provisions of this order shall subject to the other provisions of the order be entitled to its custody and be responsible for its safe custody.

11.

Replacement of defaced, lost or destroyed supply document.

- (i) If any supply document be defaced, lost or destroyed, the Collector or the Chief Rationing Officer or Mandal Revenue Officer or Assistant Supply Officer as the case may be, shall, after making such enquiry, as he may think fit issue a new supply document in place thereof on payment of Rs.10/- in the case of duplicate Above Poverty Line card and Rs.5/- in respect of duplicate Below Poverty Line/Antyodaya Anna Yojana cards.

Provided that no such fee shall be charged for the issue of any duplicate supply card, if the Collector or the authorised Officer is satisfied that the original card was defaced, lost or destroyed on account of fire, flood or other natural calamity or is required to be produced in a Court or for purposes of evidence before any person, holding an enquiry or is required to be retained for official correspondence or the duplicate supply card is required to be issued on account of some mistake on the part of the issuing office.

(ii)

Every person to whom a new supply document has been issued it shall, If he subsequently finds the lost document, for the return the latter document to the Collector or the authorised officer.

12.

Prohibition against transfer of supply documents.

- No person shall transfer to any other person a supply document issued to himself and no person shall use or dispose of or obtain such document, except under and in accordance with the provisions of this order.

Provided that no authorised fair price shop dealer shall keep in his possession any supply card or cards relating to any household or establishment whether registered in his shop or not.

13.

Returned of Supply Document by person in unauthorised possession thereof.

- Where any person is in possession of a supply document and such possession is not authorised by virtue of this order, he shall forthwith delivery the same to the person in respect of whom it is issued or to the Mandal Revenue Officer or Assistant Supply Officer of the area in which he resides.

14.

Cancellation of Supply Card.

- (i) In any case where any supply card or any entry or coupon thereon is required to be cancelled under or for the purposes of this order, it shall not be deemed to be cancelled unless it shall have been effectively cancelled in ink (whether by means of a dye or stamp or stamps or otherwise) or by means of indelible pencil and shall upon such cancellation cease to be available for lawful use.

(ii)

Appellate authority: In the context of cancellation or denying the issue or renewal of a supply card by the concerned authority, the aggrieved ration cardholder in all the districts of Andhra Pradesh except twin cities of Hyderabad and Secunderabad, Visakhapatnam (Urban) may appeal before the Revenue Divisional Officer of the concerned division within 30 days and in respect of the twin cities of Hyderabad and Secunderabad and Visakhapatnam (Urban) the concerned card holders may file an appeal before the District Supply Officers concerned within (30) thirty days.

15.

Prohibition against applying for Duplicate Supply Card etc.

- No person shall:

(a)

dishonestly apply for or receive a supply card if he knows or has reason to believe that his name is already included in any other supply card issued to any household.

(b)

obtain a supply card by furnishing false information.

(c)

without lawful authority alter or destroy a supply card issued to him.

16.

Power to enter Premises, Inspect, Search and seize stocks of Scheduled Commodities, Ask questions require Production of Documents, etc.

- (i) Any Officer or person authorised by the Government or by the Collector or by the appointing Authority or any officer of the Revenue Inspector/Checking Inspector/Food Inspector (Civil Supplies), Dy. Tahsildar (Civil Supplies)/Dy. Tahsildar (Revenue) or any Gazetted Officer of Vigilance and Enforcement Department, Andhra Pradesh, Hyderabad, may at all reasonable times inspect any stocks of scheduled commodities, supply documents or books, accounts or other documents pertaining to dealing in scheduled commodities and may for the purpose of such inspections. In case of weighment of Scheduled Commodities, the Assistant Legal Metrology Officer appointed by the Weights and Measures Department is also competent to inspect the Fair Price Shop premises.

(a)

enter the premises of any establishment or shop provided that in exercising the power of entry, due regard shall be paid by such officer or person to the social and religious customs of the occupants of the premises.

(b)

to summon and enquiry any person with the relevant and necessary questions.

(c)

Require the production of any document and take or cause to be taken extracts from or copies of such document: and

(d)

take or cause to be taken the weight or measure of the scheduled commodities found in the premises.

(ii)

Every person when so required by such officer or person under sub-clause (1) shall allow access to premises, answer all questions to the best of his knowledge and belief, produce the documents in his possession and allow extracts from or copies of any scheduled commodities found in the premises, to be taken.

(iii)

Such Officer, may in the course of such inspection search for and seize any commodity in respect of which he has reasons to believe that any provision made by his order has been or is being contravened.

(iv)

The provisions of Section 100 of the Code of Criminal Procedure 1973, relating to search and seizure shall so far as may be, apply to search and seizure under this Order.

17.

Penalties for possessing cards, making false entries or diverting stock.

- Notwithstanding anything contained in this Order,

(a)

if any fair price shop dealer is found to be in possession of supply card(s) or draws commodities by making false entries of card number(s) even though no such card holder resides in the village/municipality as the case may be. such fair price shop dealer shall be required to pay loss to Government calculated as the differences between the market rate and public distribution system rate of all commodities supposed to have been supplied or drawn on such card(s) or entries, from the date of issue of authorisation to the fair price shop dealer concerned or from the date of issue of such household supply card, whichever is later.

(b)

if any fair price shop dealer makes false entry or entries, in respect of card(s) held by person(s) residing in the village/municipality concerned, by fraudulently showing to have supplied more quantities than the quantity actually-supplied or diverts stocks to any person, but does not make any entry in the cards, with a view to making fictitious entries subsequently, or cover up the excess stocks already available with him, such dealer shall be required to pay loss to Government calculated as the difference between the market rate and Public Distribution System rate of the commodity actually delivered or covered by such false entry or entries or worked backwards from the date of issue of authorisation to the fair price shop dealer concerned or from the date of issue of such house hold supply card, whichever is later.

(c)

if any fair price shop dealer diverts stock either wholly or partly, he/ she shall be liable to pay as penalty three times the difference between the market rate and Public Distribution System rate of the commodity thus diverted, besides cancellation of authorisation given by the R.D.O/Sub-Collector.

18.

Surrender of Supply Documents and Obligations to furnish certain particulars.

- Every authorised fair price shop or authorised establishment, as the case may be, shall when so required by the Mandal Revenue Officer or the Assistant Supply Officer concerned or by an Officer authorised by the Government or the Collector, in this behalf:

(a)

deliver to him all supply cards and other supply documents surrendered to him under or for the purpose of this order; and

(b)

furnish such particulars relating to his dealings in and stock of scheduled commodities as may be required.

19.

Further conditions to be observed by the authorised Fair Price Shops.

- The authorised Fair Price Shop dealers should follow the conditions stipulated in paragraph 3 of the Annexure to this order.

20.

Appeal.

(1)

Any person aggrieved by any order passed by the Appointing Authority under clause (5) may, within thirty days from the date receipt by him/ her of such order, appeal against such order, where it is passed by.

(i)

The Revenue Divisional Officer of the Sub-Collectors or the District Supply Officer (city) having jurisdiction over the area in respect of the Visakhapatnam city to the Joint Collector in the District.

(ii)

The Chief Rationing Officer in Hyderabad District.

In disposing of any appeal under this clause, the appellate authority may, after giving the party an opportunity of making his representation, pass such order thereon as that authority may deem fit.

(2)

Pending disposal of an appeal, the appellate authority may direct that the order appealed against shall not take effect until the appeal is disposed off".

21.

Revision.

- (i) Any person aggrieved by an order under clause 20(1) (i) may, within thirty days from the date of communication to him/her of such an order, prefer a revision to the District Collector concerned.

(ii)

Any person aggrieved by an order under clause 20(1)(ii) may within thirty days from the date of communication to him/her of such an order, prefer a revision to the Commissioner of Civil Supplies, Andhra Pradesh, Hyderabad.

Provided that no order shall be passed under this clause unless the aggrieved person has been given a reasonable opportunity of representing his/her case.

(iii)

Pending disposal of the revision, the District Collector in the districts and the Commissioner of Civil Supplies in respect of Hyderabad District, may direct that the order under revision shall not have effect until the revision is disposed of.

22.

Licensing and Responsibilities/Duties of F.P. Shop Dealers.

- (i) The Fair Price Shop Dealer need not obtain further more any licence in case the Fair Price Shop dealer possesses authorisation.

(ii)

The Fair Price Shop dealer shall not retain ration cards after the supply of the essential commodities.

(iii)

The ration card holder shall not be denied the supply as per the entitlement of Essential Commodities, lying in stock by the Fair Price Shop dealer under the Public Distribution System Fair Price Shop dealer shall pass bills to the consumers on the supply of Essential Commodities.

(iv)

The scale of issue and the price of each commodity as fixed by the Government should be exhibited by the Fair Price Shop Dealer at a conspicuous place in the business premises.

(v)

Display of information on a notice at a prominent place in the shop on daily basis regarding (a) list of BPL and APL, Antyodaya/Annapurna beneficiaries (b) entitlement of essential commodities, (c) scale of issue, (d) retail issue prices, (e) timings of opening and closing of the fair price shop, (f) stock of essential commodities received during the month, (g) opening and closing stock of essential commodities (h) the authority for redressal of grievances/lodging complaints with respect to quality and quantity of essential commodities under the public distribution system, (i) display of samples of food grains being supplied through Fair Price Shop/ authorisation number and reference and validity.

(vi)

Opening and closing of the Fair Price Shops as per the prescribed timings displayed on the notice board.

(vii)

Accounts of the actual distribution of Essential Commodities and balance stocks at the end of the month should be submitted by the Fair Price Shop dealer invariably to the Deputy Tahsildar. (CS)/Mandal Revenue Officer with a copy to the Gram Panchayat.

23.

Monitoring/Inspections.

(1)

The prescribed sales register, stock register and ration card register should be verified by the Revenue Inspectors/ Food Inspectors (Civil Supplies)/ Checking Inspectors every month. Every month inspection of Fair Price Shop shall be carried out by the officials as follows:

Collector

:

3

Joint Collector

:

5

R.D.O/Sub-Collector

:

8

M.R.O./A.S.O.

:

5

D.T.(CS) (Enforcement)

:

10

(2)

(Regular inspections of every Fair Price Shop should be made once in two months by the Deputy Tahsildar (Civil Supplies)/Mandal Revenue Officer within his jurisdiction. The date of inspection schedule of Fair Price shops should be as indicated below:

(a)

Every 1st to 5th of every month the D.Ds. remitted by the dealers should be watched and lifting of the Essential Commodities should also be noted by the U.D.R.I. /CS R1 and reported to Deputy Tahsildar (Civil Supplies) on day-to-day basis. The Checking Inspector/ U.D. Revenue Inspector/Civil Supplies Revenue Inspector/ Deputy Tahsildar (CS) should inspect the Fair Price Shop soon after the lifting of Essential Commodities by the Fair Price Shop dealers.

(b)

The responsibility lies on the part of U.D.R.I./CS R.I for ensuring the opening of the Fair Price Shop by the Fair Price Shop dealer on time and run the shop in distributing the commodities as per the scheduled timings.

(3)

The Deputy Tahsildar (Civil Supplies)/ Mandal Revenue Officer should inspect Ten Fair Price Shops and Five Fair Price shops respectively in their jurisdiction for one month in the prescribed check memo.

(4)

The Collector (Civil Supplies) shall ensure monitoring the functioning of the Public Distribution System at the Fair Price Shop level through the computer network of the NIC installed in the District NIC centres. For this purpose computerized codes shall be issued to each Fair Price Shop in the district.

(5)

Collectors (Civil Supplies) shall educate the ration card holders (Consumers) regarding their rights privileges under the Public Distribution System by use of electronic and print media as well as display boards outside fair price shops.

(6)

The Collector (Civil Supplies) shall ensure periodic system of reporting and the complete information in this regard shall be sent in the prescribed form as follows:

(a)

By Fair Price Shops to the District Authorities to State Government by the 7th of the month following the month for which allocation is made in Form 'A'.

(b)

By the District Authorities to State Government by the 15th of the month for which allocation is made in form 'B'.

(c)

By the State Government to the Central Government by the end of the month following the month for which allocation is made in Form 'C'.

(7)

The Collector (Civil Supplies)/Chief Rationing Officer, Hyderabad should furnish the utilisation certification of the Commissioner of Civil Supplies as regards the allocation of food grains made by the Commissioner of Civil Supplies every month and the utilisation certificates duly signed by the Collector should reach within a period of one month from the month for which the allocation is made.

(8)

The Collector (Civil Supplies)/Mandal Revenue Officer, Hyderabad/Mandal Revenue Officer/Assistant Supply Officer shall direct the concerned fair price shop owner to provide relevant extracts of the documents maintained by him on an application made by a beneficiary on payment of a prescribed fee of Rs.5/-.

Annexe To The A.P. Public Distribution System

(Control Order), 2001

(See Clauses 3, 4, 5-16, 20, 21, 22 and 23)

(1)

Identification of families living below Poverty Line.

(1)

The criteria for the purpose of identification of BPL families the following categories of land owning people should be taken for eligibility.

(a)

All those owning wet lands upto an extent of 1.50 acres under assured sources of irrigation.

(b)

All those owning wet lands upto 2.50 acres under all other sources of irrigation like tanks and wells.

(c)

All those owning lands upto 3 acres of dry lands which are fit for raising commercial crops like tobacco, chillies etc.

(d)

All those owning upto 5 acres of dry lands.

(e)

The annual income of a family should not exceed Rs. 11,000 per annum from all sources.

(2)

The Collectors shall get the lists of Below Poverty Line and Antyodaya families reviewed every year for the purpose of deletion of ineligible and inclusion of eligible families in the presence of the local bodies representative the Gram Sabhas.

(3)

While undertaking the exercise of identification or review of Below Poverty Line and Antyodaya families a prescribed proforma to be filled up by or on behalf of the head of the family should be obtained by the issuing authority.

(4)

The date provided in the prescribed proforma should be obtained by the designated authority. The said authority shall also certify the correctness of the information contained in the proforma.

(5)

Gram Sabhas shall finalise the list of beneficiaries belonging to below Poverty Line and Antyodaya categories drawn up by the designated authority in respect of the area under their respective jurisdiction.

(6)

Where there are no Gram Sabhas, the local representatives bodies shall finalise the list of beneficiaries belonging to BPL and Antyodaya categories within their respective jurisdiction.

(7)

The Mandal Revenue Officers and Assistant Supply Officers designated authority of the State Government or the local bodies representatives of Gram Panchayats which have been entrusted with the task of identification of beneficiaries, shall verify and certify the information in the prescribed proforma for Below Poverty Line and Antyodaya families.

(2)

Ration Cards:

(1)

It should be ensured that no eligible applicant is denied a ration cards under the Public Distribution System.

(2)

The ration card holder should be entitled to draw essential commodities from a fair price shop on weekly basis.

(3)

The Government shall issue distinctive ration cards to Above Poverty Line, Below Poverty Line and Antyodaya families.

(4)

The designated authority shall issue a ration card within one month of the date of receipt of the application after necessary checks and verification.

(5)

The applications received for making additions or alterations in the ration card shall be disposed off within (15) days from the date of receipt of the application or the reasons therefor shall be intimated to the applicant in writing.

(6)

The Government shall conduct periodical checking of ration cards to weed out ineligible and bogus ration cards and bogus units in ration cards.

(7)

A ration card shall be valid for a specified period, a ration card shall be issued a fresh or renewed after fresh verification of antecedents and such other checks as may be prescribed by the Government in this regard.

(8)

Elimination of bogus ration cards as well as bogus units in the ration cards shall be a continuous exercise by the Government to check diversion of essential commodities.

(9)

Ration Cards shall not be used as documents of identity or the purpose other than as intended for.

(3)

Further conditions to be observed by the authorised Fair Price Shop.

(1)

Every authorised fair price shop shall;

(a)

Be held responsible for all the acts of commission and omission of his partners, agents, servants and other persons who are allowed to work in the shop.

(b)

Not sell scheduled commodities obtained from sources other than the Government godown or any agency appointed by the Collector, except under and in accordance with the conditions if any, of a special permission granted by the Collector or any office authorised by him from time to time.'

(c)

Always maintains adequate stocks of the scheduled commodities.

(d)

Take adequate measures to ensure that the scheduled commodities stored by him are maintained in good conditions and that damage to them due to ground moisture, rain, insects, rodents, birds, fire and such other causes is avoided. Suitable drainage shall be used wherever necessary to avoid damage from ground moisture.

Fertilisers, insecticides and poisonous chemicals likely to contaminate shall not be stored along with the scheduled commodities in the same godown or shop of the immediate juxtaposition of such commodities. It shall further be ensured that at the time of sale, the said commodities are in good condition.

(e)

Not hold any office in public life, with or without remuneration.

(2)

No authorised fair price shop shall, without reasonable cause stop the working of the shop abruptly or allow the shop to remain closed during working hours on any working day without the prior approval of the Appointing Authority.

(3)

Every authorised fair price shop intending to stop the business of supplying scheduled commodities shall give thirty days previous notice to the "appointing authority to enable him to make alternative arrangements for supplying scheduled commodities to supply card holders allotted to the shop.

(4)

The authorisation issued under this order shall be liable for suspension or cancellation, as is the case may be, for any contravention of the provisions of this order or any instructions, directions, or orders issued by the Government or Commissioner of Civil Supplies or the Collector or Chief Rationing Officer or the 'appointing authority concerned.

(5)

The authorisation issued under this Order shall be liable for suspension or cancellation as the case be, if the Fair Price shop dealer is involved in any criminal case or when any case under Essential Commodities Act, 1955 or any other similar law is pending against him/her.

(6)

Appeal. - Any person aggrieved by any order passed by the appointing authority under clause (5) may, appeal within thirty days from the date of receipt of order by him/her.

(1)

The Revenue Divisional Officer or the Sub-Collectors or the District Supply Officer (City) having jurisdiction over the area in respect of the Visakhapatnam city to the Joint Collector in the district.

(2)

The District Supply Officer to the Chief Rationing Officer in Hyderabad District.

In disposing of any appeal under this clause, the appellant authority may, after giving the party an opportunity of making his representation, pass such order thereon as that a authority may deem fit pending disposal of an appeal, the appellate authority may direct that the order appealed against shall not take effect until the appeal is disposed of.

(7)

Revision:

(1)

Any person aggrieved by an order under clause 20(1)(2) may, within thirty days from the date of communication to him/her of such an order, prefer a revision to the District Collector, concerned.

(2)

Any person aggrieved by an order clause 20(1)(ii) may, within thirty days from the date of communication to him/her of such an order, prefer a revision to the Commissioner of Civil Supplies, Andhra Pradesh, Hyderabad.

Provided that no order shall be passed under this clause unless the aggrieved person has been given a reasonable opportunity of representing his/her case.

(3)

Pending disposal of the revision, the District Collector in the Districts and the Commissioner of Civil Supplies in respect of Hyderabad District, may direct that the order under revision shall not have effect until the revision is disposed of.

The Schedule

(See sub-clause (16) of clause 2)

1.

Rice (including paddy)

X

2.

Wheat X

Whole or broken or the flour

3.

Jowar X

4.

Bajra X

products thereof

5.

Maize X

6.

Sugar

7.

Pulses

8.

Edible Oils

9.

Kerosene

10.

Janatha Sets

11.

Nationalised text books

Form A

(See clause 23(6)0]

Proforma for reporting the functioning of Fair Price Shops

Month.....

Year.....

A. Name of the State.....State Code.....

B. Name of the District_____District Code_____

C. Name of the Block_____Block Code_____

D. Number /Name of the Fair Price Shop Fair Price Shop

Code_____

E. No. of the Ration Cards attached to FPS

Antyodaya

:

Below Poverty Line

:

Above Poverty Line Others

:

Total

:

Commodities

Opening at the beginning of the month

Allocation for the month

Quantity actually received by Fair Price Shop

Total Quantity (2+4)

Quantity Distributed

Closing Stock

(1)

(2)

(3)

(4)

(5)

(6)

(7)

RICE:

APL:

BPL

Antyodaya

WHEAT:

APL

BPL

Antyodaya

LEVYSUGAR

EDIBLE OIL

KEROSENE

Form B

[See clause 23(6) (iii)]

Proforma for reporting the functioning of Fair Price Shop at District Level

Month_____

Year_____

A. Name of the State_____State Code_____

B. Name of the District_____District Code_____

C. Total number of Fair Price Shops in the District at the end of the Month_____

D. Details regarding Fair Price Shops which received the Public Distribution System commodities during the month:

Sl.No.

Commodity

No. of Fair Price shops

1.

Wheat

2.

Rice

3.

Sugar

4.

Edible Oil

5.

Kerosene

E. No. of Ration Cards:

Antyodya

Below Poverty Line Above Poverty Line Others (Annapurna)

Total

(i)

Number of Ration Cards at the beginning of the month:

(ii)

Number of Ration Cards issued during the month:

(iii)

Number of Ration Cards cancelled during the month:

(iv)

Number of Ration Cards at the close of the month:

F. Allocation/Distribution by the District authorities:

(Quantity in quintals)

Commodity

Opening Stock

Total Monthly Allocation

Total Stock

Allocation to Fair Price Shops

Lifting by Fair Price Shops

Quantity distributed

Closing stock at the end of the month

No.

Quantity

No.

Quantity

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

Rice:

Above Poverty Line

Below Poverty Line

Antyodaya

WHEAT:

Above Poverty Line

Below Poverty Line

Antyodaya

Levy Sugar

Edible Oil

Kerosene

G. Allocation/Distribution by the Fair Price Shops:

(Quantity in quintals)

Code

Commodity

Opening stock with Fair Price Shops

Quantity allocated by Fair Price Shops

Quantity received by the Fair Price Shops

Total quantity with Fair Price Shops

Quantity distributed by the Fair Price Shops

Closing stock with Fair Price Shops

Rice:

Above Poverty Line

Below Poverty Line

Antyodaya

Wheat:

Above Poverty Line

Below Poverty Line

Antyodaya

Levy Sugar

Edible Oil

Kerosene

Form C

(See clause 23(6) (iii))

Proforma for reporting the functioning of Fair Price Shops at State Level

Month: _____

Year: _____

A. Name of the State: _____ State Code _____

B. Number of Ration Cards:

Antyodaya:

Below Poverty Line:

Above Poverty Line:

Others

Total

(i)

Number of Ration Cards at the beginning of the month: #

(ii)

Number of Ration Cards issued during the month: #

(iii)

Number of Ration Cards cancelled during the month: #

(iv)

Number of Ration Cards at the close of the month: #

C. Total Number of Fair Price Shops at the end of Month: #

D. Details of Fair Price Shops which received Public Distribution System Commodities during the month: #

S.No.

Commodity

No. of Fair Price Shops

1.

Wheat

2.

Rice

3.

Sugar

4.

Edible Oil

5.

Kerosene

E. Allocation/Distribution by the State Government

(Quantity in quintals)

Commodity

Opening Stock at the beginning of the month

Total Monthly Allocation

Qty. procured under decentralized procurement
scheme

Total Stock

Quantity issued to Districts

Quantity lifted by the District

Quantity distributed

Closing stock at the end of the month

No.

Quantity

No.

Quantity

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

Rice:

Above Poverty Line

Below Poverty Line

Antyodaya

Wheat:

Above Poverty Line

Below Poverty Line

Antyodaya

Levy Sugar

Edible Oil

Kerosene

F. Allocation/Distribution by the Fair Price Shops:

(Quantity in quintals)

Code

Commodity

Opening stock with Fair Price Shops

Quantity allocated by Fair Price Shops

Quantity received by the Fair Price Shops

Total quantity with Fair Price Shops

Quantity distributed by the Fair Price Shops

Closing stock with Fair Price Shops

Rice:

Above Poverty Line

Below Poverty Line

Antyodaya

WHEAT:

Above Poverty Line

Below Poverty Line

Antyodaya

Levy Sugar

Edible Oil

Kerosene

Form I

[See Clause 5(5)]

Andhra Pradesh State Public Distribution Control Order, 2001

Application For Issue of Authorisation To Run A Fair Price Shop

01.

Name of the candidate (in capital letters)

02.

Father's Name

03.

Address

04.

Age and date of birth (certificate to be enclosed)

05.

Educational Qualifications.

06.

Caste (indicate whether he is SC or ST)

07.

whether he is physically handicapped
(certificate be enclosed in case he is physically handicapped).

08.

Whether the applicant is connected with any
other business run either by himself or by any member of his
family and if so give details

09.

Whether any member of the applicant's family has
been issued authorisation to run Fair Price Shop earlier and if
so give details.

10.

Whether any of his blood relation is working in

Revenue/CS Dept/CS Corpn. and if so give details.

11.

Village, Location, door number, where the applicant wants to run Fair Price Shop, if he is selected.

12.

Whether he can raise sufficient funds to run Fair Price Shop with his own funds and if so give source or whether he needs institutional finance.

13.

Whether he was convicted earlier for any offence under any Control Order issued by the State/Centre under E.C.

Act.

14.

Amount, Challan Number and date through which fee for issue of authorisation/renewal of authorisation has been remitted.

I have carefully read the conditions of authorisation under the Andhra Pradesh State Public Distribution Control Order, 2001 and I agree to abide by them.

*(a) I have not previously applied for such authorisation in this district

*(b) I applied for such authorisation in this district on and was not granted

*(c) I hereby apply for renewal of authorisation _____ and _____ which is enclosed.

* (Strike off the Clause not applicable)

Signature of the Applicant

Place:

Date:

Form II

[See clause 5(5)]

Form of Authorisation

Government of Andhra Pradesh Authorisation issued to the Authorised Fair Price Shop or Stockist under clause (5) of Andhra Pradesh Scheduled Commodities (Regulation of Distribution by Card System) Order, 2001.

(Liable to be cancelled, if transferred)

For authorised Fair Price Shop or Stockist Office of the Chief Rationing Officer, Hyderabad.

Date:

Authorisation No.

Name and address of the Authorised Fair Price Shop (Business premises)

Name of the dealer

Name/Names of the owner or partners or Secretary or Manager

(In case of Firm, Co-operative Society) or Company or Employees shop

1. Shri

2. Shri

3. Shri

4. Shri

Address of the premises, where the dealer is permitted to stock or store scheduled commodities.

(1)

The said person is hereby approved as an Authorised Fair Price Shopkeeper or stockist for the purpose of purchase, distribution and sale of Scheduled Commodities, which the State Government intends to supply or supplies to the public at the controlled prices.

(2)

The authorisation is valid for a period of two years ending 31st March.

(3)

The authorisation may be amended, suspended or cancelled during the period of its validity in accordance with the

provisions of the Order.

(4)

(i)

The holder of this authorisation shall maintain registers/records that may be prescribed from time to time by the Government/ Appointing Authority/ Commissioner of Civil Supplies/ Collector/Chief Rationing Officer/ Revenue Divisional Officer or the Assistant Supply Officer concerned,

(ii)

The holder of this authorisation shall complete his accounts for each day on the day to which they relate.

(5)

The Authorisation is valid for the period specified in it. The holder of the authorisation shall apply atleast one month before the expiry of the period of its validity period for renewal. It is open for the competent authority to refuse renewal of the authorisation if an application for its renewal is not made with the time allowed or after the expiry of period of validity.

(6)

The holder of this authorisation shall keep in the business premises mentioned in the authorisation all the records and books relating to the transactions of purchase, sale or storage for sale so as to make them readily available to the inspecting officers for check.

(7)

The holder of this authorisation shall sell commodities to the cardholders at the prices prescribed and supply such quantities of the commodities as may be directed by the Appointing Authority/Collector/Chief Rationing Officer/Assistant Supply Officer or the Mandal Revenue Officer or the Revenue Divisional Officer concerned.

(8)

The holder of this authorisation shall, whenever he supplies any commodity, make entries in the supply card of the consumer concerned indicating the exact quantity delivered and the date of delivery in the space provided in the supply card.

(9)

This authorisation should be displayed in a prominent place of the shop and produced for inspection when required by any authorised officer of the State Government.

(10)

This authorisation is not transferable.

(11)

The said person shall comply with any direction that may be given to him by the Appointing Authority/Collector/ Revenue Divisional Officer/Mandal Revenue Officer/Assistant Supply Officer in regard to purchase, sale of storage for sale of Scheduled Commodities and in regard to the maintenance of accounts, keeping of the registers, returns and issue of receipts and such other matters.

(12)

Notwithstanding anything contained in his order, the dealer shall not have any absolute right for renewal of the authorisation and the competent authority may for reasons to be recorded in writing refuse to renew the authorisation.

(13)

The holder of this Authorisation shall not contravene the provisions of the Andhra Pradesh Scheduled Commodities (Regulation of Distribution by Card System) Order, 2001 or violate any conditions of the authorisation issued under the order or any other order relating to foodstuffs, sugar or edible oils or edible oil seeds or petroleum products issued under the Essential Commodities Act, 1955 (Central Act 10 of 1955) or any instructions, directions of orders issued under any such provisions.

(14)

The holder of this authorisation shall regularly repay any loan taken from any Bank for the purpose of running the fair price shop.

(15)

The holder of this authorisation shall not default any amount payable to the Government of the Andhra Pradesh State Civil Supplies Corporation Limited or any other Corporation or agency appointed by the State Government towards the cost of essential commodities or charges of storage or transport of any other charges.

(16)

The holder of this authorisation shall work for a minimum period of five years unless suspended or cancelled by competent authority, Resignations etc., seeking to leave the dealership shall not be accepted within this minimum period of five years.

Date:

Appointing Authority.

Validity Extended upto:

- 1.
- 2.
- 3.
- 4.

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